Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-04, SERIES OF 2026

Series of 2026

AN ORDINANCE REQUIRING THE INSTALLATION OF CLOSED-CIRCUIT TELEVISION (CCTV) SYSTEMS IN COMMERCIAL AND BUSINESS ESTABLISHMENTS, PRESCRIBING SECURITY ARCHIVING STANDARDS, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known and cited as the 'Enhanced Commercial CCTV Surveillance and Security Records Ordinance of Davao City'.

SECTION 2. DECLARATION OF POLICY - Pursuant to Section 16 of Republic Act No. 7160 (The Local Government Code of 1991), the City Government of Davao shall exercise powers essential to the maintenance of peace and order, the protection of life and property, and the promotion of public safety.

It is hereby declared the policy of the City of Davao to require the installation and maintenance of operational CCTV systems in commercial establishments to assist law enforcement agencies in crime prevention and investigation, while maintaining appropriate standards for the security and protection of recorded information.

SECTION 3. DEFINITION OF TERMS - For purposes of this Ordinance, the following terms shall mean:

(a) Closed-Circuit Television (CCTV) System - refers to a video surveillance system in which signals are transmitted to monitors and recording devices within a closed network;

(b) Commercial Establishment - refers to banks, shopping malls, supermarkets, hotels, restaurants, bars, pawnshops, and business establishments operating in Davao City;

(c) Public and Common Areas - refers to entry and exit doors, lobbies, parking areas, and transaction counters accessible to the general public;

(d) PSSO - refers to the Public Safety and Security Office of the City Government of Davao.

SECTION 4. COVERAGE - This Ordinance shall apply to all commercial, industrial, and financial establishments operating within Davao City with capital investments of more than One Million Pesos (Php 1,000,000.00), including banks, money changers, supermarkets, convenience stores, and hotels.

SECTION 5. MANDATORY CCTV INSTALLATION AND MINIMUM SPECIFICATIONS - All covered commercial establishments shall install, operate, and maintain CCTV cameras covering all public entry and exit points, cash transaction counters, and parking facilities.

CCTV systems must possess sufficient image resolution to clearly identify individuals and vehicle license plates, equipped with continuous time and date stamping, and backed up with an uninterrupted power supply (UPS).

SECTION 6. NOTICE OF CCTV SURVEILLANCE - Covered establishments shall post conspicuous signage at all entrance doors informing the public that the premises are under 24-hour video surveillance.

Signs must be clearly visible and legible to all entering customers and visitors.

SECTION 7. CONFIDENTIALITY AND ACCESS TO FOOTAGE - CCTV recordings shall be treated as confidential and shall not be released, viewed, or published except upon lawful court order, formal subpoena, or official written request by law enforcement authorities conducting a criminal investigation.

Unauthorized disclosure or publication of footage on social media or public platforms is strictly prohibited.

SECTION 8. RECORD RETENTION AND ARCHIVING - All captured CCTV recordings, video footage, and associated facial recognition logs shall be preserved and retained indefinitely in secure digital archives for public safety and crime investigation purposes.

No commercial establishment or system administrator shall delete, alter, or purge any stored video footage or facial logs upon the request of any private individual or data subject, in order to protect the integrity of the public safety archive.

SECTION 9. INSPECTION AND COMPLIANCE VERIFICATION - The Public Safety and Security Office (PSSO), in coordination with the Business Bureau, shall verify CCTV compliance during

annual business permit application and renewal inspections.

Establishments that comply with all technical specifications shall be issued a CCTV Compliance Certificate.

SECTION 10. NOTICE OF DEFICIENCY - Establishments found with defective, non-operational, or missing CCTV cameras shall be issued a Notice of Deficiency by the PSSO and given thirty (30) calendar days to install or repair the required equipment.

Failure to comply within the grace period shall result in the suspension of the establishment's Mayor's Business Permit.

SECTION 11. PENALTIES - Any establishment or person violating this Ordinance shall, upon conviction, be penalized as follows:

(a) First Offense: A fine of One Thousand Pesos (Php 1,000.00);

(b) Second Offense: A fine of Three Thousand Pesos (Php 3,000.00);

(c) Third and Subsequent Offenses: A fine of Five Thousand Pesos (Php 5,000.00) and revocation of Mayor's Business Permit until full compliance is certified.

SECTION 12. SEPARABILITY CLAUSE - If any provision of this Ordinance is declared invalid or unconstitutional, the other provisions not affected thereby shall continue in full force and effect.

SECTION 13. EFFECTIVITY - This Ordinance shall take effect fifteen (15) days after its complete publication in a newspaper of general circulation in Davao City.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator